

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

1. JACINTA LASHAE BADELITA V. BOGDANEL BADELITA

22FL0797

On January 22, 2026, Respondent filed a Request for Order (RFO) seeking orders to travel to Romania. It was served the same day, however Respondent did not serve the requisite blank FL-320 or the Notice of Tentative Ruling as required. The parties appeared for the hearing on April 9th, at which time Respondent requested a continuance to perfect service. The request was granted and the matter was continued to June 11, 2026. On June 11th, Respondent once again requested a continuance and Petitioner requested \$1,500 in Section 271 sanctions. The request for a continuance was denied. The request for sanctions was continued to join with the present hearing date which had already been set to address Petitioner's RFO.

On April 15, 2026, Petitioner filed an RFO seeking orders regarding the transfer of the Barcelona property to Petitioner and sanctions. She filed a Memorandum of Points and Authorities and a Declaration of Attorney Amber White concurrently therewith. All required documents, with the exception of a blank FL-320, were served on April 23, 2026.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on June 29, 2026.

Petitioner filed and served her Income and Expense Declaration, a Supplemental Declaration of Petitioner, and a Supplemental Declaration of Attorney Amber White on July 2, 2026.

Petitioner is requesting an order for Respondent to sign and notarize an Interspousal Transfer Deed for the transfer of the Barcelona residence within 48 hours of the court's order. She further asks that Respondent be ordered to sign and notarize any other documents necessary to transfer the Barcelona property to Petitioner within one (1) week of the request for signature. If Respondent fails to comply, Petitioner asks that the court clerk be authorized to sign any such documents as elisor. Finally, Petitioner requests attorney's fees and sanctions in an amount no less than \$10,000, to be paid from the remainder of the \$100,000 owed to Respondent by Petitioner. Finally, she requests sanctions in the amount of \$1,500 pursuant to Family Code § 271 for the necessity of defending two hearings on Respondent's RFO.

Respondent objects to the RFO on the basis that the required blank FL-320 was not served. He asks that the RFO be dropped and he be awarded \$10,000 in sanctions due to the faulty service. He further asks the court to deny Petitioner's requests.

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According to Petitioner's Supplemental Declaration, she has received and recorded the original signed deed thereby completing transfer of the marital residence into her name only. She acknowledges that her requests regarding transfer of the property are now moot but asks that the court proceed with her requests for sanctions. She also states that the blank FL-320 was served on June 30th, immediately when the issue was brought to counsel's attention.

The court declines to rule on the requests regarding the transfer of the marital residence as the requests are now moot.

The parties are ordered to appear for the hearing on the issue of sanctions.

TENTATIVE RULING #1: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.